

OFFICE OF THE SECRETARY

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September 16, 2020

The Honorable William Pounders
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Arnold Daniel Dunham
CDCR No: F17925
Case No: BA274152
Date of Sentence: January 17, 2006

Dear Honorable William Pounders:

The purpose of this letter is to provide the court with the authority to resentence inmate Arnold Dunham, F17925 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Dunham has remained disciplinary free since being received to CDCR on February 28, 2006. Inmate Dunham is currently assigned as a Librarian Clerk and his supervisor notes he performs his duties with proficiency and professionalism, is a wealth of knowledge, and is very passionate in his position to provide reading opportunities to the population. The supervisor also notes that Dunham needs little direction to perform tasks beyond expectations, shows great initiative and a willingness to learn, has excellent critical thinking skills, is able to adapt to change, and is effective at communicating with patrons of all backgrounds/affiliations. Dunham was recognized for being well respected by both inmates

and staff. Inmate Dunham also participates in the Folsom State Prison (FSP), Reading Rewards Program. Dunham has received letters of support and four Laudatory Chrono's commending him for his efforts. Various staff at FSP have been interviewed in regards to inmate Dunham's current programming and behavior. Staff stated inmate Dunham has always been respectful, very helpful, and all interactions with him have been positive. Staff also stated inmate Dunham always shows up to his assignment with a positive attitude, assists everyone, needs little to no direction, and is a very hard worker.

Having reviewed the enclosed documentation it appears that inmate Dunham's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office